

1.

CASE #	CASE NAME	HEARING NAME
CVPS2502256	WICHTER VS WICHTER	MOTION FOR STAY

Tentative Ruling: In moving to stay the present action, Hanig cites the following code sections and court rules: C.C.P. §§ 1048, 1281.2, 1281.4 and CRC 3.515(f) and 3.1330. None of these provisions have any applicability here. C.C.P. §§ 1281.2 and 1281.4 relate to arbitration agreements and proceedings, as does CRC 3.1330; C.C.P. § 1048 applies to consolidation of actions involving common issues of law or fact; and CRC 3.515 applies to motions for coordination. Thus, Plaintiffs are correct that Hanig cites no legal authority to support her motion for a stay.

However, Courts have the inherent power to stay proceedings in the interest of justice and to promote judicial efficiency. (See *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489; see also C.C.P., § 128(a)(3) [courts have power “[t]o provide for the orderly conduct of proceedings before it”].) When a California action involves the same parties and the same subject matter as an action already pending in a court of another jurisdiction, the court has discretion to a stay the proceedings. (*Farmland Irrigation Co. v. Dopplmaier* (1957) 48 Cal.2d 208, 215 “In exercising its discretion, the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced.” (*Ibid.*))

The present case involves the alleged breach of a promissory note regarding the loan of money from Plaintiffs to Defendants. (Complaint at ¶¶ 8-20.) There is a separate family law action pending that involves the divorce of Hanig and Mitchell. However, Plaintiffs are not parties to that action. Further, the action involves the existence and alleged breach of a promissory note between Plaintiffs and Defendants. While the divorce proceeding may involve the amount of liability of each Defendant for the repayment of the loan from Plaintiffs, that issue is not necessary to the present action.

Case Management Conference vacated.

Trial Setting Conference is set for 12.10.26.

Parties to file declaration (preferably joint) 10 days in advance of hearing regarding mediation/ADR/ trial length in hours/ discovery/witnesses/interpreters/ status of settlement/special issues regarding evidence or exhibits/ any issues regarding video platform. The parties are ordered to meet and confer to select three trial dates that are agreeable to all parties. The dates selected must be on Fridays no more than six months after the trial setting conference. Failure to file can/will result in sanctions without further notice and the Court picking a trial date.

Parties directed to read and review Riverside Local Rule 3401 and the PS1 Rules governing Trial & Law and Motion posted on the Court’s website incorporated by reference into this order. Failure to comply with these rules may result in monetary, issue, or other sanctions against counsel and parties jointly and severally.